

VCU309938 Mancilla, Gabriel vs. Sierra View Dairy

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-20

Motion: Motion for Preliminary Approval of Class Action and PAGA Settlement

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Re: Mancilla, Gabriel vs. Sierra View Dairy

Case No.: VCU309938

Date: July 20, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion for Preliminary Approval of Class Action and PAGA Settlement

Tentative Ruling: To grant the motion. Motion for final approval is set for February 22, 2027, 8:30 am, Department 9.

1. Sufficiency of Amount of Settlement (Net Estimated: \$61,710)

The gross settlement amount is \$155,000. Plaintiff estimates approximately 96 proposed Class Members, providing an estimated average payout of \$642.81 per member.

The Class Members consist of:

All current and former California non-exempt employees of Defendant Sierra View Dairy who worked for Defendant in California at any time during the period of June 13, 2020, through October 29, 2025

Plaintiff primarily alleged the following violations: (1) minimum wage violations; (2) failure to pay all overtime wages; (3) meal period violations; (4) rest period violations; (5) waiting time penalties; (6) wage statement violations; (7) unfair competition; (8) failure to reimburse for necessary business expenses; and (9) Claims for civil penalties under the Private Attorneys General Act of 2004 ("PAGA")

Plaintiff provides estimates of the maximum recovery for each of the asserted wage and hour claims and penalties with information showing how the estimates were calculated including the damages models utilized. (Declaration of Brown ¶¶ 13 – 22.) Plaintiff has provided a detailed discussion of the value of each claim, applied various discount rates regarding the

chance of success as to each claim which corresponds to the final gross settlement amount. The total estimated reasonable recovery after applying various discount rates is \$168,291.00 (Declaration of Brown ¶23.)

After agreeing to participate in early mediation, Defendant formally and informally produced time and pay records for Settlement Class members, key class data points, and other documents and information relevant to the claims alleged in advance of mediation. The parties reached the settlement after a full day mediation.

The Court finds the information provided in support of the gross settlement amount sufficient for the Court to preliminarily approve the gross settlement amount, as the settlement amount appears to be within the recognized range of reasonableness given the claims and defenses asserted in this case.

Plaintiff's deductions from the gross settlement of \$155,000 are proposed as follows:

Proposed Attorney Fees (35%):

\$54,250

Proposed Attorney Costs (up to):

\$20,000

Proposed Enhancement Payment to Plaintiff Mancilla:

\$5,000

Proposed Enhancement Payment to Plaintiff Diaz:

\$5,000

Proposed Settlement Administrator Costs

\$5,790

Proposed LWDA PAGA Payment

\$3,250

Proposed Net Settlement Amount

\$61,710

2. Class Notice

The settlement agreement provides no claim form will be required of class members to participate in distributions. Only those wishing to object or opt out must file notice with the settlement administrator. Objections or opt out notices are to be made within 60 days.

The Court regularly approves notice periods of 60 days or longer. The class notice period is approved.

With respect to the content of the Notice, the Court finds the Class Notice to be reasonable. It clearly provides to the class member an estimate of the settlement share the employee is to receive and provides adequate instructions for any class member to opt out of the settlement or to submit an objection.

3. Enhancement Awards to Class Representatives

The Court preliminarily approves Plaintiffs Mancilla and Diaz as Class Representatives for settlement purposes. The proposed enhancement awards to Plaintiffs are \$5,000 each. The Court has, in past cases, approved enhancement awards of \$5,000.00 routinely. The enhancement payments are therefore approved.

4. Attorneys' Fees and Costs

Attorneys' fees of 33 1/3% of the gross settlement fund of \$155,000 or \$54,250 and costs not to exceed \$20,000 are sought by Plaintiff's counsel. Counsel has utilized the percentage of common fund methodology as well as provided adequate lodestar information to evaluate the reasonableness of the fee request.

Here, Counsel Brown indicates that he has spent 129 hours on this case, at rates of \$1,109 per hour (at 112 hours) and \$625 per hour (at 17 hours), creating a base lodestar of \$124,753. (Declaration of Brown ¶ 25.) The Court notes that these rates are already higher than what is typically "...prevailing in the community for similar work" and does not award a rate on these cases exceeding \$1,000 per hour. (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

As such, the Court will reduce the rates to \$900 and \$550 per hour, creating a modified based lodestar of \$110,150, resulting in a negative multiplier of .49. Therefore, the Court preliminarily approves the fee request.

Counsel has also provided the current costs expended in amounts of \$14,946.40 (Declaration of Brown ¶25.) The Court preliminarily approves costs not to exceed \$20,000.00.

The Court further finds that Plaintiff's counsel are experienced class action attorneys through the declarations of counsel.

5. Claims Administrator

The Court preliminary approves Apex Class Action Administration as the claims administrator for this class action based both on prior experience with this settlement administrator in other class actions litigated in this Court and on the Declaration of Sean Hartranft, Senior Vice President of Sales for IYLM. The Court preliminarily approves administration costs not to exceed \$5,790 based upon the Declaration of Hartranft and the itemized estimate. (Declaration of Hartranft – Exhibit B.)

6. Unclaimed Settlement Proceeds

The court preliminarily approves the distribution of unclaimed settlement proceeds to CASA of Tulare County in accordance with Code of Civil Procedure section 384.

7. Release

The Court finds the proposed release of claims reasonable under the circumstances.

8. LWDA Notice

Counsel's declaration indicates confirmation from the LWDA of receipt of proof of submission of the proposed settlement agreement. (Lab. Code, § 2699, subd. (l)(2).) (Declaration of Brown ¶ 30 – Exhibit 4.)

9. Class Certification

Code of Civil Procedure section 382 permits certification "when the question is of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court." (Code Civ. Proc. § 382.) The plaintiff bears the burden of demonstrating that class certification under section 382 is proper. (See *City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 460.) To do so, "[t]he party advocating class treatment must demonstrate the existence of an ascertainable and sufficiently numerous class, a well-defined community of interest, and substantial benefits from certification that render proceeding as a class superior to the alternatives." (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1021.)

Here, the Motion and accompanying declaration of Counsel sufficiently sets forth the basis for finding the class is numerous and ascertainable as 96 employees have been identified through Defendant's employment records. Additionally, common questions of law and fact predominate within the individual causes of action based on class wide policies and procedures of Defendant. Further, the class representative, through their declaration, indicates they will adequately and fairly represent the Class Members and will not place their interests above any Class Member. The Class Representative was employed by Defendant during the relevant time period and thus worked under the same policies and procedures as the Class Members.

Accordingly, the motion to preliminarily approve the Class Action and PAGA settlement is granted. Motion for final approval is set for February 22, 2027 8:30 am, Department 9.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.